

inference which is subject to challenge as to its plausibility. Only a document of the first kind can be disregarded on the sole ground that it is published after the priority date. Documents of the second kind do not stand or fall by their publication date even on issues of novelty and inventive step. Disregarding indirect evidence would deprive the party of a basic legal procedural right generally recognised in the contracting states and enshrined in Art. 117(1) and Art. 113(1) EPC (T 1110/03 cited in T 1797/09, T 419/12 and recently in T 2508/17, T 504/14, T 1436/17)

3.3.10 Third-party observations

While it is well-established by case law that **third-party observations** (and accompanying evidence) can be considered, both at first instance and on appeal, there is no obligation on the board beyond such consideration and no right of a third party to be heard (T 390/07). As a rule, third parties have none of the procedural rights associated with status as a party to the proceedings, in particular the right to be heard (T 1756/11). Conversely, parties to the proceedings can comment **at any stage** on new facts and evidence emerging from third-party observations filed after expiry of the opposition period, if they think that these could influence the decision (T 1756/11; see also chapter III.N. "Observations by third parties").

3.3.11 Failure of a party to attend oral proceedings

In G 4/92, concerning the case of a decision taken against a party who has been duly summoned but fails to appear at oral proceedings, the Enlarged Board established that **new evidence** may not be considered unless it has been previously notified and merely supports the assertions of the party who submits it, whereas **new arguments** may in principle be used to support the reasons for the decision (G 4/92, OJ 1994, 149, headnote 2). For more on non-attendance at oral proceedings, see chapter III.C.5.

4. Evaluation of evidence

4.1. Principle of free evaluation of evidence

Neither in the EPC nor in the case law of the board of appeal are formal rules laid down for the evaluation of evidence. The Enlarged Board of Appeal has recalled that proceedings before the EPO are conducted in accordance with the principle of the free evaluation of evidence (G 1/12, OJ 2014, A114, citing G 3/97, OJ 1999, 245, point 5 of the Reasons; and G 4/97, OJ 1999, 270, point 5 of the Reasons).

Thus the EPO departments have the power to assess whether the alleged facts are sufficiently established on a case-by-case basis. Under the principle of free evaluation of evidence, the respective body takes its decision on the basis of all of the evidence available in the proceedings, and in the light of its conviction arrived at freely on the evaluation whether an alleged fact has occurred or not (see e.g. T 482/89, OJ 1992, 646; T 592/98, T 972/02; see also e.g. T 838/92, in which the board found there was a detailed and consistent body of evidence establishing that a device had been on sale before the patent application was filed).

However, the principle of free evaluation of evidence in EPO proceedings cannot go so far as to justify the **refusal of a relevant and appropriate offer of evidence**. Free evaluation of evidence means that there are no firm rules according to which certain types of evidence are, or are not, convincing. The deciding body must take all the relevant evidence before deciding whether or not a fact can be regarded as proven (T 474/04, OJ 2006, 129, citing G 3/97, OJ 1999, 245, point 5 of the Reasons). On the other hand, failure to submit evidence despite a board's request to do so may be viewed as a sign that the evidence would perhaps not confirm what has been claimed (see T 428/98).

Ruling on a refusal to hear witnesses, the board in T 1363/14 held that the principle of free evaluation of the evidence did not apply until after it had been taken and could not be used to justify not taking evidence offered. See also T 2238/15 and all decisions cited there; see also in this chapter III.G.2.2.

In J 14/19 (stay of the proceedings) the board explained that the EPO did not have any discretion when deciding on a stay of proceedings under R. 14(1) EPC. If a third party demonstrated that the requirements in R. 14(1) EPC were met, the proceedings for grant had to be stayed. This was not the same as deciding whether the factual requirements for a stay under R. 14(1) were indeed met, which was not a matter of discretion but a question of evaluating the evidence. The latter saw the decision-making body examine the evidence to decide whether it was satisfied that the claimed facts were correct (see G 1/12, OJ 2014, A114). If it considered that a pivotal fact had not been established, it could order that more evidence be submitted under Art. 114(1) EPC.

4.2. Probative value of evidence on a case-by-case basis

According to the principle of free evaluation of evidence, each piece of evidence is given an appropriate weighting according to its probative value. As the Enlarged Board of Appeal pointed out in G 3/97 (OJ 1999, 245, point 5 of the Reasons) and G 4/97 (OJ 1999, 270, point 5 of the Reasons), "(t)he principle of free evaluation would be contradicted by laying down firm rules of evidence defining the extent to which certain types of evidence were, or were not, convincing" (cited in G 1/12, OJ 2014, A114).

With regard to reviewing the evaluation of evidence, in T 1604/16 the board held that boards had the power to review contested decisions in full, including not only the points of law but also the facts (see also in this chapter III.G.4.2.2 b)).

The following cases illustrate how the boards have evaluated various pieces of evidence in the light of the specific circumstances.

4.2.1 Ranking of means of evidence

The board in T 2659/17 observed (with reference to T 474/04) that an affidavit carried less weight than testimony. It found, therefore, that decisions should not be based solely on an affidavit, but rather the person who had made it should be heard as a witness whenever offered by a party. This applied all the more in the case in hand since the patent proprietor had challenged the content of the affidavits and demanded that the offered witnesses be

heard. Denying it the opportunity to question those witnesses had prevented it from rebutting the ultimately crucial evidence. This was even more serious given that evidence for the prior use lay largely within the power and knowledge of the opponent (violation of Art. 113(1) EPC). See also T 329/02 in this chapter III.G.3.3.4.

In T 918/11, the board held that a mere reference to the fact that testimonies B1 and B2 concerned facts which had occurred at least 14 years ago and that other documentary evidence might possibly exist did not suffice in the case in hand to dismiss the testimonies as insufficient. It went against the general rules concerning the consideration of evidence to distinguish dogmatically between the evidentiary value of a witness testimony on the one hand and a document on the other hand. The opposition division had apparently considered documents to be of a more conclusive evidentiary value than witnesses. Such an approach had no basis in the EPC, Art. 117 EPC containing no ranking of the means of evidence it listed (see also T 2565/11, in which it was similarly found that witness testimony and documents were not ranked in this way).

See also in this chapter III.G.2.4.1.d) and III.G.2.5.4.

4.2.2 Witness testimony and written statements

See also in this chapter III.G.2.4. and III.G.2.5.

Witness testimony may be given in writing (written witness statements/statutory declarations) or orally (hearing of witness).

a) Credibility of allegedly linked witnesses

The probative value of the declarations of a witness depends on the circumstances of the particular case (T 937/93, cited in T 190/05). The **credibility of witnesses** cannot be impugned merely because they are related to one another and have a business relationship with one of the parties (T 363/90). An allegation based solely on suspicion cannot reasonably be expected to form a valid ground for casting doubt on the credibility of the evidence (see T 970/93 involving allegations of falsified evidence). The statements of employees of one of the parties were regarded as sufficient evidence in a series of appeal cases, e.g. T 162/87 and T 627/88; T 124/88; T 482/89, OJ 1992, 646; T 363/90; T 830/90, OJ 1994, 713; T 838/92 and T 327/91 (general manager of one party); T 190/05; J 10/04 (employee of representative's law firm).

While the written statements of independent persons would tend to carry more weight, the statements of employees of parties to the proceedings are not objectionable per se. In this respect, case T 523/14 was not comparable with T 1257/04, in which an **employee** statement was the sole piece of evidence filed to prove the public availability of a brochure. In T 523/14, the content of written statements by two employees of the opponents was considered sufficiently credible (public availability of an advertising newsletter sent by e-mail) because it was corroborated on its crucial points by other documents. Concerning the probative value of two expert reports submitted, one being from an employee of the opponent, see T 129/12.

A board may admit a statutory declaration as evidence even if it is signed by an opponent's senior manager. It is then to be considered in accordance with the principle of free evaluation of evidence (T 64/13).

In T 2057/13 the affidavit in respect of the contents of priority document P1, filed for the first time by the patent proprietor in reply to the board's communication under Art. 15(1) RPBA 2007, was not admitted. The affidavit was written by one of the inventors named in P1 and an employee of the appellant-patent proprietor. The board had to assess the contents of P1 in an impartial manner from the perspective of an independent skilled person.

In T 505/15 the opposition division had considered the witness to be credible and the board had no reason to depart from this assessment. The appellant (patent proprietor) attempted to cast doubt on the witness's credibility by referring to the fact that she was an employee of the appellant (opponent) and that there was a bonus element to her remuneration. The board took the view that bonus payments were not unusual and, according to the witness, had for years not related to a project concerning the alleged public prior use. In the board's view the **discrepancies** pointed out by the appellant (proprietor) did not call into question the reliability of the overall assertions made by the witness.

In J 10/04 the Receiving Section had doubted the credibility of sworn statements given by a legal assistant. It had not invited her to be heard in person as a witness because this would not have led to a different evaluation of the evidence. The Legal Board held, first of all, that a sworn statement was a form of evidence with a high probative value, especially if it was given, as in the case in point, in the knowledge that wilfully false statements were punishable under the applicable law. Strong reasons were therefore needed to disregard this kind of evidence, for example a set of circumstances making the statement very unlikely. If the Receiving Section had considered the circumstances described in the statement very unlikely, it ought to have heard the witness personally in order to evaluate her credibility (ruling applied in e.g. T 1100/07).

See also T 2338/13, a special case in which the doubt about the relationship between the opponent and a witness had implications for the applicable standard of proof; conversely, in T 734/18 (in which the supplier had business ties to the patent proprietor and the opponent) the board could not see the similarities with T 2338/13 cited by the patent proprietor in support of its request for a higher standard of proof to be applied on appeal than the opposition division applied (see in this chapter, III.G.4.3.2 "Public prior use").

b) Evaluation of evidence by the department of first instance – review

The scope of the boards' competence in this regard has been expressly discussed in a number of recent decisions, for example T 1418/17 (see below), from which the board in the more recent T 1604/16 diverged, holding that boards had the power to review contested decisions in full, including not only the points of law but also the facts.

The board in T 2565/11 overturned the evaluation of evidence made by the department of first instance because the opposition division erred as regards the underlying facts and

failed to give an evaluation that was free of contradictions. The board gave its own evaluation of the evidence regarding the relevant facts. The board also noted that further explanations given by a witness, in order to close a potential gap in the documentary evidence on file, could not be considered per se as **new facts**. Otherwise, hearing a witness would be meaningless, and evidence provided on the basis of documents would be given a higher evidentiary value than a witness testimony, for which no basis could be found in the EPC. T 2565/11 is cited in T 2398/12 in the context of an object submitted as evidence in support of an allegation of public prior use which had gone missing during the appeal but had already been examined by the opposition division.

The board in T 1476/14 held there was no ground in the case in hand to overturn the opposition division's assessment of the testimony of two witnesses. The credibility of witnesses cannot be impugned because of **differences** in testimonies relating not to the essentials but to less important aspects of prior use.

In T 1798/14 the opposition division had considered the witness reliable and his answers detailed, credible and consistent overall. The respondent (patent proprietor) had not voiced any concerns either; it had merely disputed that the machine witnesses may have seen comprised all the features of the claim. The board saw no reason to depart from this assessment and to doubt the accuracy of the witness's statements. In T 544/14 the question of evaluating the evidence was again discussed in detail by the board (re-hearing the witness necessary but eventually not decisive – alleged public prior use not novelty-destroying).

According to the board in T 621/14 appeal proceedings were not intended as a **second opportunity** to have evidence heard unless sufficiently substantiated grounds for appeal gave some reason for it. The mere desire for evidence to be evaluated differently did not result in a re-opening before the board of the procedure for taking evidence. The board saw no reason to deviate from the prior art identified by the opposition division through the hearing of witnesses.

In T 1107/12 the board pointed out that the opposition division's evaluation of the testimony had left it in no doubt as to its reliability or the witness's credibility as a person. Its evaluation of the evidence was not otherwise vitiated by any error in law. It was based on the right criteria, could be followed in all respects and did not contain any logical mistakes. It was therefore not open to the board to overrule its findings and re-evaluate the evidence in its place.

In T 804/92 (OJ 1994, 862) the opposition division had, in a communication to the parties, suggested in detail the content of a statement under oath. Such a practice was firmly rejected by the board because it involved the risk of leading witnesses and could seriously undermine the probative value of such statements. This applied to departments at any instance in proceedings before the EPO.

In T 1418/17 the board established that all the relevant arguments by the parties regarding both prior uses (sale/exhibition) had already been put forward and taken into account in the proceedings at first instance. With regard to the relevant facts established by the